

**COMPLAINT NO.2021-00170, 2021-00172, 2021-00176, 2021-00274 AND 2021-00312**

**IN THE MATTER OF**

**JOHN EDWARD BRIGGS JR.**

§ **BEFORE THE TEXAS BEHAVIORAL**  
§ **HEALTH EXECUTIVE COUNCIL**  
§  
§ **THE TEXAS STATE BOARD**  
§ **OF EXAMINERS OF**  
§ **PROFESSIONAL COUNSELORS**

**AGREED ORDER**

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **John Edward Briggs Jr.** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

**FINDINGS OF FACT**

1. Respondent is licensed as a professional counselor (#75477) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. On or about March 2020 thru October 2020, the Respondent failed to take reasonable precautions to protect clients from physical and emotional harm resulting from individual and couple's therapy.
3. On or about September 202, the Respondent failed to timely submit a report of abuse to the Child Protective Services, as required by the Texas Family Code, Chapter 261.
4. On or about December 2020 thru January 2021, the Respondent engaged in sexual contact with a client.
5. On or about March 2020 thru January 2021, the Respondent engaged in a non-therapeutic relationship with a client that was unrelated to therapy.
6. On or about January 2021 thru June 2021, the Respondent failed to notify and update the Council of changes in the Respondent's physical address, email address and telephone number.
7. On or about April 2021, the Respondent failed to respond to the Council's Notice of Violation dated March 11, 2021.

8. On or about August 2021, the Respondent failed to respond to the Council's Notice of Violation dated July 14, 2021.

### **CONCLUSIONS OF LAW**

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 TAC §§681.41 (l), (m) (1) and (p) pertaining to general ethics, 681.42 (b) (1) pertaining to sexual misconduct, 681.45 (d)(1), pertaining to required reporting, 882.32 (a) pertaining to the duty update name and address and 884.30, pertaining to cooperation with the Council.

### **ORDER**

#### **IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:**

1. Respondent, by signing this Agreed Order, hereby voluntarily and permanently **RESIGNS** his or her license (#75477) in lieu of further adjudication by the Council on these matters.
2. Respondent shall return his or her license to the Council no later than fourteen (14) days after the date this order is ratified. Respondent has already returned his license to the Council.
3. The Council will not consider an application for licensure from Respondent and Respondent agrees not to apply for any new license from the Council for ten (10) years from the effective date of this Order.
4. If Respondent seeks to apply for a license with the Council in the future, and the Council is willing to reinstate the license, Respondent will be subject to conditions of eligibility to be imposed by the Council at that time.

### **WARNING**

**RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE**

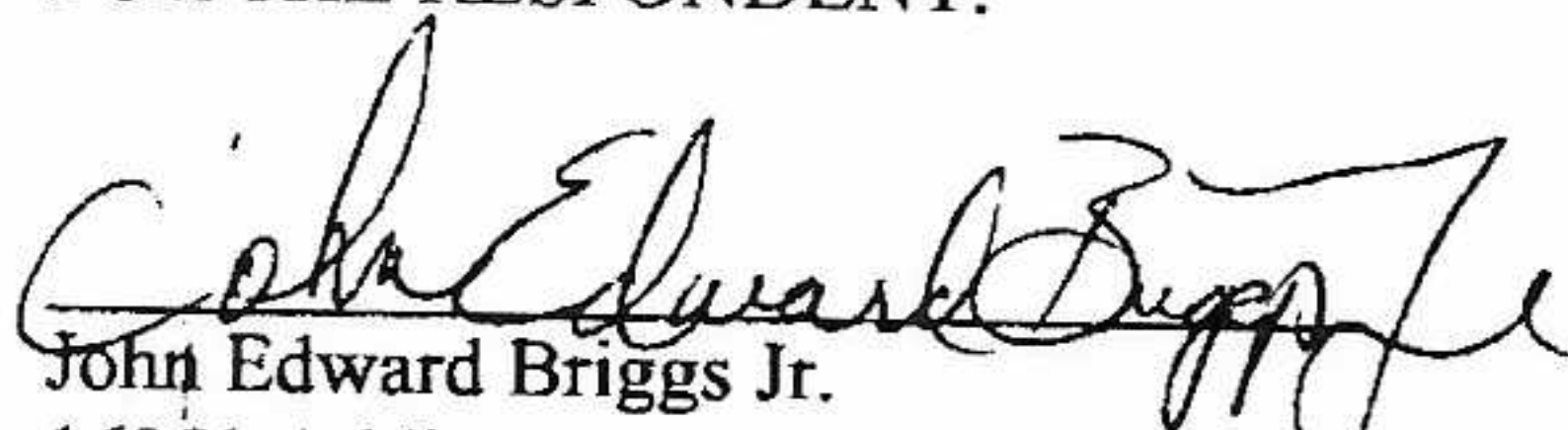
**§884.55 REQUIRING FURTHER DISCIPLINARY ACTION.**

**WAIVERS**

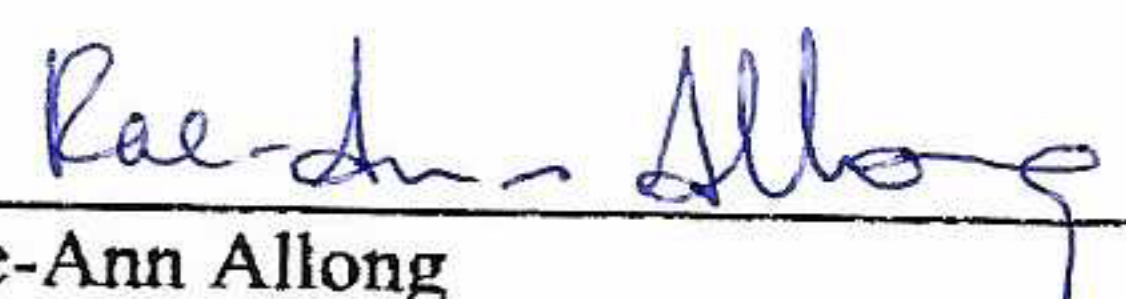
On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:

  
John Edward Briggs Jr.  
16951 Addison Road, Apt 802 G  
Addison, Texas 75001-5103

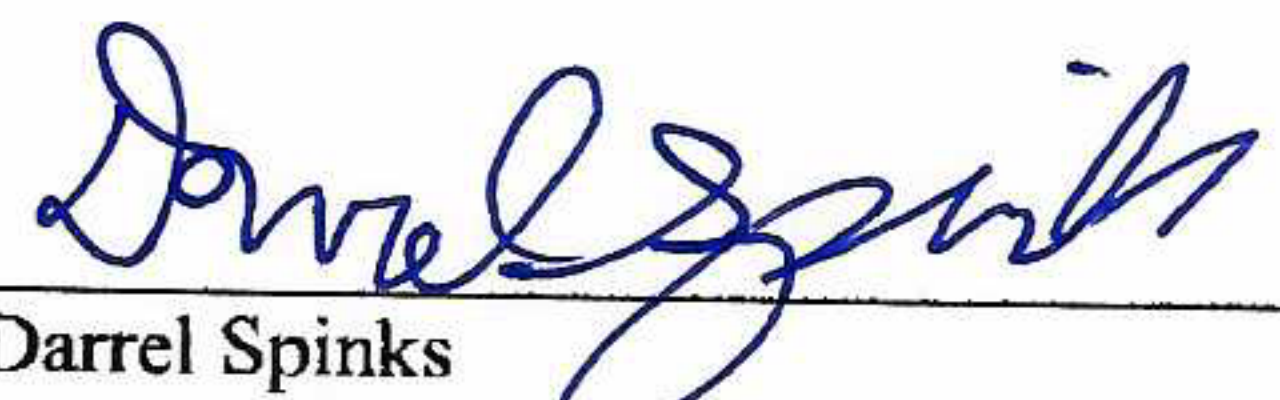
FOR THE STAFF OF THE COUNCIL:

  
Rae-Ann Allong  
Texas Bar No. 01100400  
Staff Attorney  
Texas Behavioral Health Executive Council  
333 Guadalupe, Ste. 3-900  
Austin, Texas 78701

DATE SIGNED: 26 August 2021

DATE SIGNED: 8/26/2021

APPROVED, RATIFIED, AND ENTERED THIS 26th DAY OF August, 2021.

  
Darrel Spinks  
Executive Director  
Texas Behavioral Health Executive Council